DELINEATION OF ENDANGERMENT ZONES

Arden Environmental Quality Board, explanatory statement

1. The definition

The Act defines Endangerment Zones as areas located within one mile of the coast of the State, on the offshore islands, or in a high-risk Flood Area as defined on the Board's flood area maps. The three limbs are alternatives; a parcel within any of them is within a Zone.

2. The coastal limb

The Board measures the one mile landward from mean high water as shown on the tidal boundary survey. 44,516 parcels fall within the coastal limb. The Board notes that the measurement is from the water and not from any road or municipal boundary, so that the limb follows the shoreline and produces an irregular landward edge.

3. The islands limb

The five inhabited offshore islands are designated in their entirety, without regard to distance from the water. 2,305 parcels fall within this limb. Uninhabited islands are not designated.

4. The flood area limb

Areas designated Flood Risk Area 1 or 2 on the Board's maps are high risk. Areas 3 and 4 are not. The Board's designations are revised periodically and the Act attaches to the designation as it stands.

5. Overlap

Approximately 8,838 parcels fall within more than one limb, principally coastal parcels that are also within a tidal flood area. Overlap does not increase any charge; a parcel is either within a Zone or not.

6. What the Board does not determine

Whether a parcel is Affected Property depends also on assessed value, which is determined by the Property Assessment Division and not by the Board. The Board's delineation answers only the locational limb of the definition.

Explanatory statements do not have the force of the designations they explain.